

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #:

Date Filed: March 13, 2018

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KIMBERLY SANTIAGO, RUTH ALMENDAREZ,
ELIZABETH VARGAS, VICTOR DAVID,
and ERICK MIRANDA,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MICHAEL
KALISH, SHIELD #10483 and POLICE
OFFICERS JOHN DOE 1-10, the names being
fictitious and presently unknown, individually and
in their official capacity as employees of the New
York City Police Department,

Defendants.

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SUMMONS WITH NOTICE

Plaintiff designates

Place of Trial

KINGS County

Basis of Venue

Place of Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 13, 2018

CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. MICHAEL KALISH (Shield #10483)
73rd Precinct, 1470 East New York Avenue
Brooklyn, New York 11212

RUBERT & GROSS, P.C.

Attorneys for Plaintiffs

150 Broadway, Suite 1314

New York, New York 10038

(212) 608-3103


MATTHEW FLAMM

Notice: The nature of this action is:

Negligence, assault and battery, false imprisonment, invasion of home, conversion, violation of civil rights pursuant to 42 U.S.C. § 1983 and 1988, negligent infliction of emotional distress.

The relief sought is: Monetary damages

Upon failure to appear, judgment will be taken against you by default with interest from December 22, 2016 together with attorneys' fees and the costs of this action

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SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X

KIMBERLY SANTIAGO, RUTH ALMENDAREZ,
ELIZABETH VARGAS, VICTOR DAVID, and
ERICK MIRANDA,

Plaintiffs,

VERIFIED COMPLAINT
Index No.

-against-

THE CITY OF NEW YORK, P.O. MICHAEL
KALISH, SHIELD #10483 and POLICE
OFFICERS JOHN DOE 1-10, the names being
fictitious and presently unknown, individually and
in their official capacity as employees of the New
York City Police Department,

Defendants.

-----X

Plaintiffs, KIMBERLY SANTIAGO (“SANTIAGO”), RUTH ALMENDAREZ
 (“ALMENDAREZ”), ELIZABETH VARGAS (“VARGAS”), VICTOR DAVID (“DAVID”) and ERICK MIRANDA (“MIRANDA”), by their attorneys, RUBERT & GROSS, P.C., complaining of defendants, THE CITY OF NEW YORK (“CITY”), P.O. MICHAEL KALISH, SHIELD #10483 (“KALISH”) and POLICE OFFICERS JOHN DOE 1-10 (“JOHN DOE 1-10”), allege as follows:

1. At all times hereinafter mentioned, Plaintiff, SANTIAGO, was and is a resident of Kings County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff, ALMENDAREZ, was and is a resident of Kings County, City and State of New York.

4. At all times hereinafter mentioned, Plaintiff, DAVID, was and is a resident of Kings County, City and State of New York.

5. At all times hereinafter mentioned, Plaintiff, MIRANDA, was and is a resident in Kings County, City and State of New York.

6. At all times hereinafter mentioned, Defendant, CITY, was and is a municipal corporation created, organized and duly existing under and by virtue of the laws of the State of New York.

7. At all times hereinafter mentioned, Defendant, CITY, operated, maintained, managed and controlled the New York City Police Department, including all police officers thereof.

8. At all times hereinafter mentioned, the New York City Police Department was an agency, instrumentality, department of Defendant, CITY.

9. At all times hereinafter mentioned, Defendant, KALISH, was employed by the New York City Police Department, a municipal agency of the City of New York.

10. At all times hereinafter mentioned, Defendant, KALISH, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

11. Defendant, KALISH, was assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

12. At all times hereinafter mentioned Defendant, KALISH, was acting within the scope of his employment as a police officer with the New York City Police Department.

13. At all times hereinafter mentioned Defendant, KALISH, was acting under color of law and authority as police officers with the New York City Police Department.

14. Defendant, KALISH, is sued individually and in his official capacity.

15. At all times hereinafter mentioned, Defendants, JOHN DOE 1-10, were employed by the New York City Police Department, a municipal agency of the City of New York.

16. At all times hereinafter mentioned, Defendants, JOHN DOES 1-10, were employees and/or agents of the New York City Police Department, a municipal agency of the City of New York

17. Defendants, POLICE OFFICERS JOHN DOE 1-10, were assigned to the New York City Police Department's 73rd Precinct in Brooklyn, New York.

18. Defendants, POLICE OFFICERS JOHN DOE 1-10, are sued individually and in their official capacity.

19. At all times hereinafter mentioned Defendants, POLICE OFFICERS JOHN DOE 1-10, were acting within the scope of their employment as police officers with the New York City Police Department.

20. At all times hereinafter mentioned Defendants, POLICE OFFICERS JOHN DOE 1-10, were acting under color of law and authority as police officers with the New York City Police Department.

21. On or about February 9, 2017 and within ninety (90) days of the occurrences complained of herein, Plaintiffs duly served Notices of Claim upon Defendant, CITY, in the manner and mode required by law.

22. That more than sixty (60) days have elapsed since the service of Plaintiffs' Notices of Claim and their claims have not been adjusted or paid.

23. That this action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.

24. That Plaintiffs have complied with all conditions precedent applicable to the instant action.

25. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

26. Plaintiffs repeat the allegations contained in the forgoing paragraphs as if fully set forth herein.

27. On December 22, 2016 plaintiff, SANTIAGO, had the legal right to possession or occupancy of real estate located at 297 Dumont Avenue, Apt. 3A, Brooklyn, New York.

28. On December 22, 2016 plaintiff, ALMENDAREZ, had the legal right to possession or occupancy of real estate located at 297 Dumont Avenue, Apt. 3A, Brooklyn, New York.

29. On December 22, 2016 plaintiff, VARGAS, had the legal right to possession or occupancy of real estate located at 297 Dumont Avenue, Apt. 3A, Brooklyn, New York

30. On December 22, 2016 plaintiff, DAVID, had the legal right to possession or occupancy of real estate located at 297 Dumont Avenue, Apt. 3A, Brooklyn, New York

31. On December 22, 2016 plaintiff, MIRANDA, had the legal right to possession or occupancy of real estate located at 297 Dumont Avenue, Apt. 3A, Brooklyn, New York

32. On December 22, 2016 at approximately 6:00 a.m., Defendant, CITY, through its police officers, servants and /or employees entered onto Plaintiffs' home located at 297 Dumont Avenue, Apartment 3A in Brooklyn, New York without permission and without authorization.

33. On December 22, 2016 at approximately 6:00 a.m., Defendant, KALISH, entered onto Plaintiffs' home located at 297 Dumont Avenue, Apartment 3A in Brooklyn, New York them without permission and without authorization.

34. On December 22, 2016 at approximately 6:00 a.m., Defendants, JOHN DOE 1-10, entered onto Plaintiffs' home located at 297 Dumont Avenue, Apartment 3A in Brooklyn, New York without permission and without authorization.

35. On December 22, 2016 at approximately 6:00 a.m., defendant, CITY, through its police officers, servants, agents and/or employees entered plaintiffs' home claiming they had a warrant to search the premises and to arrest someone who did not live there and was and is unknown to any of the Plaintiffs.

36. On December 22, 2016 at approximately 6:00 a.m., defendant, KALISH, entered plaintiffs' home claiming he had a warrant to search the premises and to arrest someone who did not live there and was and is unknown to any of the Plaintiffs.

37. On December 22, 2016 at approximately 6:00 a.m., defendants, JOHN DOE 1-10, entered plaintiffs' home claiming they had a warrant to search the premises and to arrest someone who did not live there and was and is unknown to any of the Plaintiffs.

38. Defendants did not have a warrant to arrest anyone who lived or occupied the subject premises.

39. Defendant, CITY, through its police officer, agents, servants and/or employees used a battering ram to break open the door of 297 Dumont Avenue, Apartment 3A, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

40. Defendant, KALISH, used a battering ram to break open the door of 297 Dumont Avenue, Apartment 3A, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

41. Defendants, JOHN DOE 1-10, used a battering ram to break open the door of 297 Dumont Avenue, Apartment 3A, and, in body armor and armed with high powered rifles, entered the Plaintiffs' home without lawful authority.

42. With the occupants handcuffed and immobilized, Defendant, CITY, through its agents, servants and employees began an hour's long, destructive search of the home.

43. With the occupants handcuffed and immobilized, Defendant, KALISH began an hour's long, destructive search of the home.

44. With the occupants handcuffed and immobilized, Defendants, JOHN DOE 1-10, began an hour's long, destructive search of the home.

45. Defendant, CITY, through its police officers, agents, servants and/or employees took photographs of Plaintiffs handcuffed and seated on a couch in their home's living room.

46. Defendant, CITY, through its police officers, agents, servants and/or employees JOHN DOE 1-10, posted said photographs on social media with one photo captioned "Merry Christmas Its NYPD!"

47. Defendant, CITY, through its police officers, agents, servants and/or employees posted a second photograph on social media captioned "Warrant Sweeps Its still a party smh."

48. Defendant, KALISH, took photographs of Plaintiffs handcuffed and seated on a couch in their home's living room.

49. Defendant, KALISH, posted said photographs on social media with one photo captioned “Merry Christmas Its NYPD!”

50. Defendant, KALISH, posted a second photograph on social media captioned “Warrant Sweeps Its still a party smh.”

51. Defendants, JOHN DOE 1-10, took photographs of Plaintiffs handcuffed and seated on a couch in their home’s living room.

52. Defendants, JOHN DOE 1-10, posted said photographs on social media with one photo captioned “Merry Christmas Its NYPD!”

53. Defendants, JOHN DOE 1-10, posted a second photograph on social media captioned “Warrant Sweeps Its still a party smh.”

54. Defendants did not find any contraband or evidence of crimes despite searching the home for more than two hours.

55. At the time of the home invasion, trespass and Plaintiffs’ arrests, Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned home entry, search, and arrest of the Plaintiffs was without probable cause or lawful basis.

56. As a result of the above-described trespass upon plaintiffs’ property, Plaintiffs, SANTIAGO, ALMENDAREZ, VARGAS, DAVID AND MIRANDA suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including the debasement of a prolonged and destructive raid on their home.

57. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

58. Plaintiffs repeat the allegations contained in the forgoing paragraphs as if fully set forth herein.

59. That on December 22, 2016 at approximately 6:00 a.m., while Plaintiffs, SANTIAGO, VARGAS, ALMENDAREZ, DAVID and MIRANDA were in their home located at 297 Dumont Avenue, Apartment 3A in Brooklyn, New York they were assaulted and battered by members of the New York City Police Department, including but not limited to defendants, KALISH and JOHN DOE 1-10.

60. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, SANTIAGO, at gunpoint.

61. Defendant, KALISH, woke up Plaintiff, SANTIAGO, at gunpoint.

62. Defendants, JOHN DOE 1-10, woke up Plaintiff, SANTIAGO, at gunpoint.

63. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, VARGAS, at gunpoint.

64. Defendant, KALISH, woke up Plaintiff, VARGAS, at gunpoint.

65. Defendants, JOHN DOE 1-10, woke up Plaintiff, VARGAS, at gunpoint.

66. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, ALMENDAREZ, at gunpoint.

67. Defendant, KALISH, woke up Plaintiff, ALMENDAREZ, at gunpoint.

68. Defendants, JOHN DOE 1-10, woke up Plaintiff, ALMENDAREZ, at gunpoint.

69. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, DAVID, at gunpoint.

70. Defendant, KALISH, woke up Plaintiff, DAVID, at gunpoint.

71. Defendants, JOHN DOE 1-10, woke up Plaintiff, DAVID, at gunpoint.

72. Defendant, CITY, through its police officers, agents, servants and/or employees woke up Plaintiff, MIRANDA at gunpoint.

73. Defendant, KALISH, woke up Plaintiff, MIRANDA, at gunpoint.

74. Defendants, JOHN DOE 1-10, woke up Plaintiff, MIRANDA, at gunpoint.

75. By the actions described above, Plaintiffs were intentionally placed in apprehension of imminent harmful and offensive contact by police officers employed by Defendant, CITY.

76. Defendant, CITY, through its police officers, agents, servants and/or employees, ordered Plaintiff, VARGAS, from her bed, grabbed her by the hair, threw her against a wall, and handcuffed, arrested and held her on a couch in the home's living room while Defendants prepared to search the apartment.

77. Defendant, CITY, through its police officer, agents, servants and/or employees placed handcuffs purposefully tightly on Plaintiff, SANTIAGO.

78. Defendant, CITY, through its police officer, agents, servants and/or employees placed handcuffs purposefully tightly on Plaintiff, VARGAS.

79. Defendant, CITY, through its police officer, agents, servants and/or employees placed handcuffs purposefully tightly on Plaintiff, ALMENDAREZ.

80. Defendant, CITY, through its police officer, agents, servants and/or employees placed handcuffs purposefully tightly on Plaintiff, DAVID.

81. Defendant, CITY, through its police officer, agents, servants and/or employees placed handcuffs purposefully tightly on Plaintiff, MIRANDA.

82. Defendant, KALISH, placed handcuffs purposefully overly tight on Plaintiff, SANTIAGO.

83. Defendant, KALISH, placed handcuffs purposefully over tight on Plaintiff, VARGAS.

84. Defendant, KALISH, placed handcuffs purposefully overly tightly on Plaintiff, ALMENDAREZ.

85. Defendant, KALISH, placed handcuffs purposefully overly tight on Plaintiff, DAVID.

86. Defendant, KALISH, placed handcuffs purposefully overly tight on Plaintiff, MIRANDA.

87. Defendants, JOHN DOE 1-10, placed handcuffs purposefully overly tight on Plaintiff, SANTIAGO.

88. Defendants, JOHN DOE 1-10, placed handcuffs purposefully over tight on Plaintiff, VARGAS.

89. Defendant, JOHN DOE 1-10, placed handcuffs purposefully overly tightly on Plaintiff, ALMENDAREZ.

90. Defendant, JOHN DOE 1-10, placed handcuffs purposefully overly tight on Plaintiff, DAVID.

91. Defendant, JOHN DOE 1-10, placed handcuffs purposefully overly tight on Plaintiff, MIRANDA.

92. By the actions described above, Plaintiffs were assaulted, battered and otherwise injured without cause and/or justification by police officers employed by Defendant, CITY, including but not limited to KALISH and JOHN DOE 1-10.

93. The above-mentioned actions constituted assault and battery against Plaintiffs.

94. The aforementioned conduct of Defendants was willful and wanton and the Defendants acted with reckless disregard for the consequences of their actions.

95. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputations and standing within their community.

96. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

97. Plaintiffs repeat the allegations contained in the foregoing paragraphs as if fully set forth herein.

98. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, SANTIAGO, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees

99. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, VARGAS, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees.

100. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, ALMENDAREZ, was lawfully in her home, she was detained against her will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees.

101. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, DAVID, was lawfully in his home, he was detained against his will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees.

102. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, MIRANDA, was lawfully in his home, he was detained against his will and falsely arrested by defendant, CITY, its police officer, agents, servants and/or employees.

103. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, SANTIAGO, was lawfully in her home, she was detained against her will and falsely arrested by defendant, KALISH.

104. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, VARGAS, was lawfully in her home, she was detained against her will and falsely arrested by defendant, KALISH.

105. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, ALMENDAREZ, was lawfully in her home, she was detained against her will and falsely arrested by defendant, KALISH.

106. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, DAVID, was lawfully in his home, he was detained against his will and falsely arrested by defendant, KALISH.

107. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, MIRANDA, was lawfully in his home, he was detained against his will and falsely arrested by defendant, KALISH.

108. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, SANTIAGO, was lawfully in her home, she was detained against her will and falsely arrested by defendants, JOHN DOE 1-10.

109. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, VARGAS, was lawfully in her home, she was detained against her will and falsely arrested by defendants, JOHN DOE 1-10.

110. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, ALMENDAREZ, was lawfully in her home, she was detained against her will and falsely arrested by defendants, JOHN DOE 1-10.

111. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, DAVID, was lawfully in his home, he was detained against his will and falsely arrested by defendant,

112. On December 22, 2016 at approximately 6:00 a.m., while plaintiff, MIRANDA, was lawfully in his home, he was detained against his will and falsely arrested by defendants, JOHN DOE 1-10.

113. The aforementioned actions constitute false arrest and false imprisonment and were carried out without cause and/or justification by police officers employed by defendant, CITY, including but not limited to defendants, KALISH and JOHN DOE 1-10.

114. Plaintiffs' detention and imprisonment were without probable cause, without a valid arrest warrant and in bad faith.

115. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused plaintiffs to be wrongfully detained in violation of the laws of the State of New York and their constitutional rights.

116. At the time of the unlawful imprisonment, Plaintiffs had not committed any illegal act.

117. At the time of the unlawful imprisonment, Plaintiffs had not committed or attempted to commit any crime.

118. Plaintiffs had not given Defendants probable cause to believe that they had committed any illegal acts.

119. At the time of Plaintiffs' unlawful imprisonment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

120. Defendants acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiffs.

121. The aforesaid arrest was malicious, unlawful and not based upon a valid warrant, probable cause, and/or any other justification, and was therefore a false arrest.

122. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within their community.

123. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

124. Plaintiffs repeat the allegations contained in the foregoing paragraphs as if fully set forth herein.

125. At all times relevant, in entering and in breaking into the Plaintiffs' home, using unnecessary force, searching, stealing property, detaining, and arresting the Plaintiffs, the Defendants, CITY, KALISH and JOHN DOE 1-10, acted intentionally, willfully, maliciously, negligently and with reckless disregard for and deliberate indifference to Plaintiffs' rights and their physical and mental well-being.

126. Defendant, KALISH's conduct towards Plaintiffs was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

127. Defendants, JOHN DOE 1-10's conduct towards Plaintiffs was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

128. Defendants acted with the desire and intent to cause Plaintiffs emotional distress or acted under circumstances known to them, which made it substantially certain that they would cause such emotional distress to Plaintiffs.

129. Defendants acted with utter disregard of the consequences of their actions.

130. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within their community.

131. By reason of the foregoing, Plaintiffs demands judgment against Defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

132. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

133. By the actions described above, the individual Defendants, KALISH and POLICE OFFICERS JOHN DOE 1-10, deprived Plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to their right to be free and secure in their persons and home and their right to be free from arrest or search, except on probable cause or pursuant to a warrant supported by probable cause.

134. Defendant, KALISH, failed and refused to properly investigate allegations relating to Plaintiffs.

135. Defendant, KALISH, failed and refused to properly investigate allegations relating 297 Dumont Avenue, Apartment 3A, Brooklyn, New York.

136. Defendant, KALISH, failed and refused to scrutinize the credibility of any informant whose information was used as the basis for seeking a search warrant.

137. Defendant, KALISH, failed and refused to determine the identity of people identified in the search warrant sought.

138. Defendant, KALISH, ignored that information leading to any search warrant for the Plaintiffs' residence that was incredible and/or insubstantial or otherwise legally insufficient.

139. Defendants, JOHN DOE 1-10, failed and refused to properly investigate allegations relating to Plaintiffs.

140. Defendants, JOHN DOE 1-10, failed and refused to properly investigate allegations relating 297 Dumont Avenue, Apartment 3A, Brooklyn, New York.

141. Defendants, JOHN DOE 1-10, failed and refused to scrutinize the credibility of any informant whose information was used as the basis for seeking a search warrant.

142. Defendants, JOHN DOE 1-10, failed and refused to determine the identity of people identified in the search warrant sought.

143. Defendants, JOHN DOE 1-10, ignored that information leading to any search warrant for the Plaintiffs' residence was incredible and/or insubstantial or otherwise legally insufficient.

144. As a result thereof, any warrant issued supporting the December 22, 2016 home invasion was without probable cause.

145. Defendants violated Plaintiffs' rights secured by the Civil Rights Act of 1871, 42 USC §1981 and §1983, and rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and rights secured under the laws of the State of New York and the Constitution of the State of New York.

146. Defendants, acting under color of state law, used their authority and power for a wrongful purpose and violated Plaintiffs' rights by assaulting, battering them, invading their home and falsely detaining them.

147. These acts were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts and were done without lawful justification.

148. The conduct and actions of Defendants, acting under color of law, in failing to take any steps to protect Plaintiffs from the unjustified and unconstitutional was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of their acts.

149. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries and the debasement of a prolonged and destructive raid on their home.

150. By reason of the foregoing, Plaintiffs demand judgment against Defendants, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

151. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

152. By the actions described above, the individual Defendants deprived Plaintiffs, of rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to their right to be free from excessive and unreasonable force.

153. Defendant, KALISH and JOHN DOE 1-10 acting under color of state law, used their authority and power for a wrongful purpose and violated Plaintiffs' rights by assaulting, battering them, invading their home and falsely detaining them.

154. These acts were done intentionally, maliciously and/or with a reckless disregard for their natural and probable consequences and were done without lawful justification.

155. The conduct and actions of defendants, KALISH and JOHN DOE 1-10, acting under color of law, in failing to take any steps to protect Plaintiffs from the unjustified and unconstitutional was intentional, malicious and/or with a reckless disregard for the natural and probable consequences of their acts.

156. Defendants violated Plaintiffs' rights secured by the Civil Rights Act of 1871, 42 USC §1981 and §1983, and rights secured by the First, Fourth, Fifth and Fourteenth

Amendments to the United States Constitution and for rights secured under the laws of the State of New York and the Constitution of the State of New York.

157. Defendants, under color of law, conspired with each other and with others, reached an understanding, and acted to undertake a course of conduct to injure, oppress, threaten, and intimidate Plaintiffs in the free exercise and employment of the rights and privileges and equal protection of the law secured to them by the Constitution, including the rights: to be free from the intentional use of unreasonable force; to be free from unreasonable searches and seizures; and to be free from false imprisonment.

158. As a result of the foregoing, Plaintiffs suffered violation of their constitutional rights, physical pain and suffering, shock, fear, and emotional upset and trauma, among other injuries.

159. By reason of the foregoing, Plaintiffs demand judgment against the Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

160. Plaintiff, VICTOR DAVID, repeats the allegations of the forgoing paragraphs as though fully stated herein.

161. On December 22, 2016, plaintiff, VICTOR, was the rightful owner of a Bulova watch valued at approximately THREE HUNDRED DOLLARS (\$300.00).

162. On December 22, 2016 defendant, CITY, through its agents, servants and/or employees wrongfully and unlawfully took possession of the above-mentioned watch that rightfully belonged to plaintiff, DAVID.

163. Defendant, CITY, through its agents, servants and/or employees, intentionally and without authority exercised control over the aforementioned property of Plaintiff, VICTOR

DAVID, thereby interfering with Plaintiff, VICTOR DAVID's right of possession and use of his property.

164. Defendant, KALISH, intentionally and without authority exercised control over the aforementioned property of Plaintiff, VICTOR DAVID, thereby interfering with Plaintiff, VICTOR DAVID's right of possession and use of his property.

165. Defendants, JOHN DOE 1-10, intentionally and without authority exercised control over the aforementioned property of Plaintiff, VICTOR DAVID, thereby interfering with Plaintiff, VICTOR DAVID's right of possession and use of his property.

166. As a consequence of the foregoing acts Plaintiff, DAVID, has been injured, including suffering the loss of his property.

167. As a result of the unlawful taking and conversion of Plaintiff, DAVID'S personal property, Plaintiff has been damaged in a sum of money representing the value of the said property.

168. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

169. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

170. The individual Defendants and each of them, failed to intervene to prevent or end the unlawful home entry, use of force, search, assault, battery and unlawful detention and arrest of the Plaintiffs, despite having a reasonable opportunity to do so.

171. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries including the debasement of a prolonged and destructive raid on their home.

172. By reason of the foregoing, Plaintiffs demand judgment against the Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

173. Plaintiffs repeat the allegations of the forgoing paragraphs as though fully stated herein.

174. Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, Defendants, KALISH and JOHN DOE 1-10, negligently performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

175. As a result of the negligence of Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, Defendants, KALISH and JOHN DOE 1-10, Plaintiffs were caused to suffer personal injuries, violation of their constitutional rights, and the emotional upset, shock, fear, and trauma of the conduct to which they were subjected.

176. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including a prolonged and destructive raid on her home.

177. By reason of the foregoing, Plaintiffs demand judgment against Defendants, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

TENTH CAUSE OF ACTION

178. Plaintiffs repeats the allegations contained in the forgoing paragraphs as if fully set forth herein.

179. The acts complained of herein resulted from Defendant, CITY, through its agents, servants and employees, breaching its duty to properly retain, assign, train, supervise or discipline its law enforcement personnel, including but not limited to Police personnel who unlawfully searched Plaintiffs' home, assaulted and battered, arrested, detained them and caused property damage or loss to Plaintiffs herein.

180. The actions of Defendant, CITY, through its agents, servants and/or employees heretofore described constitute negligence in that Defendant, CITY, negligently retained, trained or failed to train its agents, servants and/or employees, including Defendant, KALISH and JOHN DOE 1-10.

181. Defendant, CITY, was negligent in its hiring and retention of its agents, servants and/or employees, especially Defendants, KALISH and JOHN DOE 1-10, who the CITY knew or, in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of authority and misused and abused their positions.

182. Defendant, CITY's failure properly to hire, retain, assign, train, supervise or discipline its Police personnel, including the Police personnel involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional home invasions, searches, and arrests and allowed the individual Defendants to believe that they could with impunity enter, search, arrest, and detain Plaintiffs and damage or steal their property.

183. By reason of the foregoing, the Defendant, CITY, through its agents, servants, and employees, failed and refused to use such care in the performance of its duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

184. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, loss of liberty and other constitutional rights, among other injuries, including the debasement of a prolonged and destructive raid on their home.

185. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

ELEVENTH CAUSE OF ACTION

186. Plaintiffs repeat the allegation of the foregoing paragraphs as if set forth in full herein.

187. During the unlawful invasion into Plaintiffs' home, Defendant, CITY, through its agents, service and/or employees caused property damage to Plaintiffs' real property.

188. During the unlawful invasion into Plaintiffs' home, Defendant, CITY, through its agents, service and/or employees caused property damage to Plaintiffs' personal property.

189. During the unlawful invasion into Plaintiffs' home, Defendant, KALISH, caused property damage to Plaintiffs' real property.

190. During the unlawful invasion into Plaintiffs' home, Defendant, KALISH, caused property damage to Plaintiffs' personal property.

191. During the unlawful invasion into Plaintiffs' home, Defendants, JOHN DOE 1-10 caused property damage to Plaintiffs' real property.

192. During the unlawful invasion into Plaintiffs' home, Defendants, JOHN DOE 1-10 caused property damage to Plaintiffs' personal property.

193. As a result thereof, Plaintiffs suffered damage to their real and personal properties.

194. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

TWELFTH CAUSE OF ACTION

195. Plaintiffs repeat the allegation of the foregoing paragraphs as if set forth in full herein.

196. The conduct to which the Plaintiffs were subjected resulted from and was caused by the failure of Defendant, CITY OF NEW YORK, properly to train and supervise its personnel, including the Police personnel involved herein.

197. Defendant, CITY OF NEW YORK, through its policymakers knew to a moral certainty that their employees confront situations requiring them to, among other things, scrutinize the credibility of informants whose information is used as the basis for seeking search warrants, properly identify the correct apartment number for executing search or arrest warrants and determine the identity of people subject to search warrants.

198. Defendant, CITY OF NEW YORK, through its policymakers knew to a moral certainty that police officers would be presented with difficult choices of the sort that training or supervision would make less difficult or that there is a history of employees mishandling such situations, and the employees' wrong choice frequently caused the deprivation of constitutional rights.

199. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants, JOHN DOE 1-10, to believe that they could ignore the plain fact that, among other things, the information leading to any search warrant for

the Plaintiffs' residence was incredible and/or insubstantial or otherwise legally insufficient, or that the apartment they entered was not the one specified on an otherwise validly procured warrant, or that there was never lawful basis to detain and arrest the Plaintiffs.

200. That the actions of Defendant, CITY, its agents, servants and/or employees heretofore described violate Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful home entry, search, and arrest.

201. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

202. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants to believe that they could ignore the plain fact that, among other things, that the apartment they entered was not the one specified or that there was never any lawful basis to detain and arrest the Plaintiffs.

203. All of the acts by the police defendants described above were carried out pursuant to policies and practices of defendant, CITY, which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant, CITY, and its agency, the NYPD.

204. Defendant, CITY, by its policy-making agents, servants and employees, authorized, sanctioned and/or ratified the police defendants' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.

205. That the sanctioning and ratification of these policies, customs and practices constitute deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons residing in the City of New York.

206. The actions of the defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to conduct warrantless searches and arrests; to ignore deficiencies in search warrants and to permit and allow the wrongful detention of citizens and the destruction of their property.

207. The actions of defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to break into people's home, search, arrest and detain citizens and destroy and/or take their property without the legal right to do so.

208. The actions of defendant, CITY, its agents, servants and/or employees resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to unlawfully seize property from citizens.

209. The actions of the police officers in invading Plaintiff's home and taking Plaintiffs' property resulted from and were taken pursuant to *de facto policies* and/or well-settled and widespread customs and practices of the NYPD, of making false accusations to obtain a search warrant.

210. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the CITY for a substantial period of time.

211. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the CITY and their predecessors in interest did not discipline individuals who engaged in such practices.

212. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers

engaged in unconstitutional and impermissible searches, arrests and imprisonments, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

213. The City's policies and practices in existence at the time of the conduct complained of herein, which caused Plaintiffs' injuries herein included, *inter alia*: 1) failure to properly supervise, train, instruct, and discipline police officers with regard to proper conduct and investigation at and in relation to carrying out a search warrant; failure to supervise and train its officers in the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence that could be relevant to the investigation and/or prosecution, and/or discoverable in any litigation; 2) failure to properly train officers with respect to the New York State Penal Law and the state and federal Constitutions and with regard to adequate evidence necessary to accuse citizens of committing crimes; 3) failure to train with respect to the exercise and limitations of their authority; 5) failure to properly supervise, train, instruct, and discipline police officers, including defendant herein, known to be irresponsible in their dealings with citizens of the community; known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify evidence, known to manipulate, intimidate, threaten, and coerce witnesses, known to deprive criminal defendants of their right to a fair trial.

214. The effect of this practice is to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

215. That in the vast majority of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.

216. That defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.

217. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.

218. On information and belief, Defendants, KALISH and JOHN DOE 1-10, have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that they and others were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.

219. Police officers receive no training or woefully inadequate training regarding applications for search warrants; conduct of searches pursuant to warrants; documentation of witness statements in a manner that will accurately documents and preserve the true circumstances surrounding applications for warrants.

220. Defendant, CITY, knew or should have known that the acts alleged herein would deprive Plaintiffs of their rights, in violation of the Fourth and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the Constitution of the State of

New York, including, without limitation, Plaintiffs' freedom unlawful searches and seizures, deprivation of liberty and property without due process of law.

221. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d) The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.
- e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

222. Defendant, CITY, has had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation of citizens' committing crimes that it knew they had not committed and the conduct of improper and baseless searches of citizens' home.

223. The conduct to which Plaintiffs were subjected resulted from and was caused by the failure of Defendant, CITY, to properly train and supervise its personnel, including the Police personnel involved herein.

224. Defendant, CITY, through its policymakers knew to a moral certainty that their employees confront situations requiring them to, among other things, scrutinize the credibility of informants whose information is used to seek search warrants, properly identify the correct

apartment number for executing search or arrest warrants and determine the identity of people subject to search warrants.

225. Defendant, CITY, through its policymakers knew to a moral certainty that police officers would be presented with difficult choices of the sort that training or supervision would make less difficult or that there is a history of employees mishandling such situations, and the employees' wrong choice frequently caused the deprivation of constitutional rights.

226. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants, KALISH and JOHN DOE 1-10, to believe that they could ignore the plain fact that, among other things, the information leading to any search warrant for the Plaintiffs' residence was incredible and/or insubstantial or otherwise legally insufficient, or that the apartment they entered was not the one specified on an otherwise validly procured warrant, or that there was never lawful basis to detain and arrest the Plaintiffs.

227. That the actions of Defendant, CITY, its agents, servants and/or employees heretofore described violate Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful home entry, search, and arrest.

228. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

229. This failure constitutes deliberate indifference to Plaintiffs' rights and created the atmosphere allowing the individual Defendants to believe that they could ignore the plain fact that, among other things, the apartment they entered was not the one specified or that there was never any lawful basis to detain and arrest the Plaintiffs.

230. As a result thereof, Plaintiffs suffered emotional trauma, fright, physical pain and suffering, humiliation, and loss of liberty and other constitutional rights, among other injuries, including the debasement of a prolonged and destructive raid on her home.

231. By reason of the foregoing, Plaintiffs demand judgment against Defendant, CITY OF NEW YORK, in a sum of money which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

THIRTEENTH CAUSE OF ACTION

232. Plaintiffs repeat the allegation of the forgoing paragraphs as if set forth in full herein.

233. In the event that Plaintiffs are successful in the prosecution of the aforesaid claims, Plaintiffs shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from Defendants.

By reason of the foregoing, Defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiffs, KIMBERLY SANTIAGO, RUTH ALMENDAREZ, ELIZABETH VARGAS, VICTOR DAVID, and ERICK MIRANDA, respectfully demand judgment against Defendants, THE CITY OF NEW YORK, P.O. MICHAEL KALISH and JOHN DOE 1-10, and requests compensatory and punitive damages to be fixed at trial in a sum which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action pursuant to 42 U.S.C. §1988;

and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: March 13, 2018
New York, New York

RUBERT & GROSS, P.C.

Attorneys for Plaintiff

150 Broadway Suite 712

New York, New York 10038



MATTHEW FLAMM

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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KIMBERLY SANTIAGO, RUTH ALMENDAREZ,
ELIZABETH VARGAS, VICTOR DAVID, and
ERICK MIRANDA,

Plaintiffs,

VERIFICATION

Index No.

-against-

THE CITY OF NEW YORK, P.O. MICHAEL
KALISH, SHIELD #10483 and "JOHN DOE" 1-
10, the names being fictitious and presently
unknown, individually and in their official capacity
as employees of the New York City Police
Department,

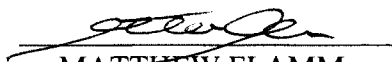
Defendants.

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MATTHEW FLAMM, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury pursuant to
Civil Practice Law and Rules Section 2106.

I am associated with Rubert & Gross, P.C., attorneys for the Plaintiffs and have read
the foregoing COMPLAINT and know the contents thereof; the same is true to my own
knowledge, except as to matters therein stated to be alleged upon information and belief, and
as to those matters, I believe them to be true. The reason this verification is made by me and
not the Plaintiffs is that they do not reside in the county in which I have my office. CPLR
§3020 (d)(3).

DATED: March 13, 2018
New York, New York


MATTHEW FLAMM